

HOUSE No. 3174

The Commonwealth of Massachusetts

PRESENTED BY:

William F. MacGregor and Brandy Fluker-Reid

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to a child and dependent care tax credit.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>William F. MacGregor</i>	<i>10th Suffolk</i>	<i>1/14/2025</i>
<i>Samantha Montaño</i>	<i>15th Suffolk</i>	<i>2/25/2025</i>
<i>Lindsay N. Sabadosa</i>	<i>1st Hampshire</i>	<i>2/25/2025</i>

HOUSE No. 3174

By Representatives MacGregor of Boston and Fluker-Reid of Boston, a petition (accompanied by bill, House, No. 3174) of William F. MacGregor, Samantha Montañó and Lindsay N. Sabadosa relative to a child and dependent care tax credit. Revenue.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to a child and dependent care tax credit.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Section 6 of chapter 62 of the General Laws, as most recently amended by section 194 of
2 chapter 238 of the acts of 2024, is hereby amended by adding the following subsection:-

3 (jj) With respect to a taxpayer who is a non-resident for part of the taxable year, the credit
4 shall be further limited to the amount of allowable credit multiplied by a fraction, the numerator
5 of which shall be the number of days in the taxable year the person resided in the commonwealth
6 and the denominator of which shall be the number of days in the taxable year. A taxpayer who
7 incurred child or dependent care expenses through the use of child or dependent care services
8 shall be allowed a credit in an amount equal to \$500 for each such dependent under section 151
9 of the Code or qualifying individual with respect to the taxpayer; provided, however, that the
10 allowed credit against the tax otherwise due under this subsection in the amount of 25 per cent of
11 the federal tax credit allowable for child and dependent care expenses in the same tax year;
12 provided further, if the taxpayer is married at the close of the taxable year, the credit provided in

13 this subsection shall be allowed if: (a) the taxpayer and the taxpayer's spouse file a joint return
14 for the taxable year; or (b) the taxpayer qualifies as a head of household under section 2(b) of the
15 Code. A person who is a non-resident for the entire taxable year shall not qualify for the credit. If
16 the amount of the credit allowed under this subsection exceeds the taxpayer's tax liability, the
17 commissioner shall treat the excess as an overpayment and shall pay the taxpayer the entire
18 amount of the excess without interest.